

Court No. - 3

Case :- WRIT - C No. - 15995 of 2021

Petitioner :- Suresh Chandra Gupta

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Arun Kumar Sharma

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Heard Shri Arun Kumar Sharma, learned counsel for the petitioner; learned Standing Counsel for the State and; Shri Baleshwar Chaturvedi, learned counsel for the respondent no.2.

Present petition has been filed against the notice dated 4.9.2020 issued by respondent no.2 seeking electricity charges being Rs. 9,85,156/- due from the petitioner.

Submission of learned counsel for the petitioner is that against the demand for electricity charges due, petitioner has filed an objection dated 25.2.2021 (Annexure no.6 to the writ petition) wherein he has prayed for (i) correction of the bill and; (ii) payment through installments.

Insofar as prayer (i) made by the petitioner with respect to correction, is referable to provision of Clause 6.15 of the Uttar Pradesh Electricity Supply Code, 2005 (hereinafter referred to as the 'Code'), the present petition is **disposed of** with a direction, in case, petitioner complies with Clause 6.5(b)(ii) of the Code within a period of three weeks from today and makes necessary deposit, respondent no.2 may proceed to pass appropriate orders regarding correction, as prayed for. Once the prayer for correction has been dealt with, the said respondent may further proceed to consider second prayer of the petitioner

regarding payment through installments, in terms of Clause 6.14 of the Code.

For the purposes of the deposit required to be made by the petitioner, respondent no.2 shall communicate to the petitioner the exact amount required to be pre-deposited under Clause 6.5(b)(ii) of the Code within a period of one week from today. Amount so demanded, shall be deposited within a period of two weeks therefrom. Adjustment of any amount deposited by the petitioner may be granted for the purpose of Clause 6.5(b) of the Code.

For a period of eight weeks from today or till the disposal of the petitioner's objection, no coercive measure shall be adopted against the petitioner.

Order Date :- 16.7.2021
Prakhar